

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 25-07

PKDC, LLC,
Complainant,

v.

COSCO SHIPPING LINES CO., LTD.,
Respondent.

JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant PKDC, LLC, and Respondent COSCO Shipping Lines Co., Ltd., by their undersigned counsel, submit this joint motion to extend deadlines respectfully requesting an extension of the remaining deadlines set forth in the Presiding Officer's Scheduling Order, as detailed herein, by seven (7) days. The parties seek this extension to provide additional time to complete settlement discussions.

Good cause exists for a brief extension of the remaining deadlines by one week. In the additional time provided by the previous extension of the Scheduling Order, the parties have diligently worked to narrow their discovery disputes and continued to discuss settlement. Specifically, after the parties met and conferred regarding Respondent's responses to Complainant's second discovery requests and successfully narrowed certain discovery disputes, the parties engaged in further settlement discussions which should soon result in an agreement in principle. Due to the absence of relevant personnel, however, such discussions cannot be

completed before the current discovery deadline of August 24, 2026. A brief extension of time to finish these settlement discussions and reach an agreement in principle will promote the Commission's "policy in favor of settlement," *Carlstar Grp. LLC v. UTI, U.S., Inc.*, Docket No. 17-08, 2018 WL 4002863, at *1 (ALJ Aug. 14, 2018) (granting a brief extension of deadlines), and not significantly delay the resolution of this matter. Should an agreement in principle be reached, the parties anticipate requesting a stay of proceedings to finalize their settlement agreement.

The parties respectfully request that the Presiding Officer extend the remaining deadlines as follows:

Event	Current Deadline	Proposed New Deadline
Close of all discovery	August 24, 2026	August 31, 2026
Complainant's brief, proposed findings of fact, and appendix	September 8, 2026	September 15, 2026
Respondent's opposition brief, proposed findings of fact, responses to Complainant's proposed findings of fact and appendix due	October 8, 2026	October 15, 2026
Complainant's reply brief and responses to findings of fact due	October 22, 2026	October 29, 2026

* * *

For the foregoing reasons, the parties respectfully request that the Presiding Officer grant the instant motion and extend the deadlines in this matter.

Dated: August 20, 2026

/s/ Luke Mathers

Luke Mathers

Sandler, Travis & Rosenberg, P.A.

286 Madison Avenue, Suite 1200

New York, New York 10017

(212) 549-0160

lmathers@strtrade.com

Counsel for Complainant

Respectfully submitted,

/s/ Kaya Massey

Jeffrey/Fenneman Law + Strategy PLLC

700 12th Street, NW Suite 700

Washington, DC 20005

Eric Jeffrey

Rebecca Fenneman

Kaya Massey

Nicholas Webb

EJeffrey@JeffreyFenneman.com

RFenneman@JeffreyFenneman.com

KMassey@JeffreyFenneman.com

NWebb@JeffreyFenneman.com

Counsel for Respondent

CERTIFICATE OF SERVICE

I certify that on August 20, 2026, the foregoing submission was served by electronic mail on all counsel of record, in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020, as follows:

Attorneys for Respondent:

Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005

Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com

Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com

Kaya C. Massey
KMassey@JeffreyFenneman.com

Nicholas L. Webb
NWebb@JeffreyFenneman.com

/s/ Luke Mathers
LUKE MATHERS